Republic of the Philippines
OFFICE OF THE PRESIDENT

COMMISSION ON HIGHER EDUCATION

16 July 2024

MICHAEL TEE, Ph.D
Chancellor
University of the Philippines, Manila

Through: **LEO D.P CUBILLAN**
Vice President for Academic Affairs
University of the Philippines
Diliman, Quezon City

Dear **Chancellor Tee:**

The Leading the Advancement of Knowledge in Agriculture and Sciences- Program Management and Coordination Office (LAKAS-PMCO) respectfully transmits the attached CHED Legal-endorsed Supplemental Agreement to effect the following CHED Commission en Banc (CEB)- approved request per resolution No. 123-2024 dated 25 March 2024 of the UP-lead projects under the CHED LAKAS Program: entitled "Phytochemical characterization of macroalgae for food and high-value products (PhycoPRO)' under the CHED LAKAS Program:

1. Authority to use the project's unexpended balance for project-related expenditures from 01 January to 30 June 2024;
2. Present the remaining third/final budget requirement to their respective Governing Boards for funding assistance or counterpart; and
3. Amended work plan for CY 2024, Gantt Chart, and corresponding Line Item Budget

Should you find the attached Supplemental Agreement in order, please facilitate the SA to be signed by the UP President as the principal signatory and the Project Leader as witness.

As the lead HEI of the aforementioned project, kindly coordinate with the collaborating implementing HEIs/SUCs to facilitate the signing of the SA. Please return all the seven (7) copies of the signed Agreement to LAKAS-PMCO on or before 23 July 2024 to further action by this office.

Thank you for your continued support.

Most respectfully yours,

MARY SYLVETTE T. GUNIGUNDO, Ph.D.
Director IV, Office of Planning, Research and Knowledge Management
Program Manager, LAKAS-PMCO

Copy furnished:

Elnor C. Roa Ph.D
Chancellor, Mindanao State University (MSU) Naawan

Irene B. Rodriguez, Dr.rer.Nat
Co-Project Leader, UP Diliman

Raul G. Bradecina Ph.D
President, Partido State University (ParSU)

Geraldine F. De Jesus Ed.D.
President, Sorsogon State University (SorSU)

Cherry I. Ultra Ph.D
President, University of Eastern Philippines (UEP)

Michael Y. Roleda, Dr. rer. Nat.
Project Leader, UP Diliman

Rey Y. Capangpangan, Ph.D
Collaborator, MSU Naawam

Michael A. Clores, Ph.D
Collaborator, ParSU

Richard V. Dumilag, Ph.D
Collaborator, SorSU

Karina Milagros R. Cui- Lim Ph.D
Collaborator, UEP

2nd SUPPLEMENTAL AGREEMENT OF THE LAKAS PROJECT ENTITLED LAKAS 2021-035 "PHYTOCHEMICAL CHARACTERIZATION OF MACROALGAE FOR FOOD AND HIGH VALUE PRODUCTS (PHYCOPRO)"

Between and among

THE COMMISSION ON HIGHER EDUCATION,

THE UNIVERSITY OF THE PHILIPPINES,

THE MINDANAO STATE UNIVERSITY - NAAWAN,

THE PARTIDO STATE UNIVERSITY,

THE SORSOGON STATE UNIVERSITY,

-and-

THE UNIVERSITY OF EASTERN PHILIPPINES

KNOW ALL MEN BY THESE PRESENTS:

This 2nd SUPPLEMENTAL AGREEMENT (hereinafter referred to as "Agreement") is entered into by and among:

The **PHILIPPINE COMMISSION ON HIGHER EDUCATION**, a government agency created pursuant to Republic Act No. 7722 with principal address at Higher Education Development Center, C.P. Garcia Avenue, UP Diliman, Quezon City represented herein by its Chairman, **J. PROSPERO E. DE VERA III, DPA,** hereinafter referred to as the **"CHED"**;

The **UNIVERSITY OF THE PHILIPPINES**, the national university, created by virtue of Act No. 1870, as amended and strengthened by Republic Act 9500, with principal office at Quezon Hall, UP Diliman, Quezon City, Philippines, represented herein by UP Manila Chancellor, **MICHAEL L. TEE, M.D.**, pursuant to the approval of its Board of Regents, hereinafter referred to as the "**UP**";

The **MINDANAO STATE UNIVERSITY-NAAWAN CAMPUS,** with office address at Pedro Pagalan St., Poblacion, Naawan, Misamis Oriental, 9023, represented herein by its Chancellor, **ELNOR C. ROA, Ph.D.**, hereinafter referred to as **"MSU-Naawan"**;

The **PARTIDO STATE UNIVERSITY,** with office address at San Juan Bautista St. Goa Camarines Sur 4422, represented herein by its President, **RAUL G. BRADECINA, Ph.D.**, hereinafter referred to as **"ParSU"**;

The **SORSOGON STATE UNIVERSITY,** with office address at Magsaysay St, Sorsogon City, represented herein by its President, **GERALDINE F. DE JESUS Ed.D.**, hereinafter referred to as **"SorSU"**;

and

The **UNIVERSITY OF EASTERN PHILIPPINES**, with office address at University Town, Catarman N. Samar, 6400, represented herein by its President, **CHERRY I. ULTRA, Ph.D.**, hereinafter referred to as **"UEP"**;

Hereinafter collectively referred to as **"UNIVERSITIES"**.

CHED and **UNIVERSITIES** are collectively referred to as the "Parties" or individually as "Party".

RECITALS:

WHEREAS, the **CHED** and the **UNIVERSITIES** entered into a Research Funding Agreement (RFA) by virtue of *Commission en banc* (CEB) Resolution No. 294-2022 dated 07 June 2022 for the implementation of the project entitled: **LAKAS 2021-035: "Phytochemical Characterization of Macroalgae for Food and High-Value Products (PhycoPRO)"**, registered as Doc. No. 342, Page No. 70, Book No. XII, series of 2022, of the Notarial Registry of Notary Public of Atty. Tzeitel Christine DG Cruz on 11 July 2022;

WHEREAS, under the terms and conditions of the RFA, CHED will provide a total budget allocation in the amount of **Seventeen Million Eleven Thousand One Hundred Forty-Four Pesos and Thirty Centavos (PhP17,011,144.30)** for the whole project's third tranche, subject to availability of funds, which shall be distributed according to the approved funding requirements of the implementing institutions and by the CHED subject to applicable Philippine Government accounting and auditing laws, rules and regulations;

WHEREAS, the LAKAS Program did not receive funding from the Department of Budget and Management for FY 2023 GAA thereby affecting the release of the second and third/final tranche of approved project funds due to the "Phytochemical Characterization of Macroalgae for Food and High-Value Products (PhycoPRO)";

WHEREAS, the **CHED** and the **UNIVERSITIES** entered into a Supplemental Agreement (SA) by virtue of *Commission en banc* (CEB) Resolution No.130-2023 dated 28 March 2023 for the implementation of the PhycoPRO project, registered as Doc. No. 190, Page No. 39, Book No. X, series of 2023, of the Notarial Registry of Notary Public of Atty. Tzeitel Christine DG Cruz on 29 May 2023;

WHEREAS, under the terms and conditions of the SA, the second tranche EO may not be released; hence the need to amend or adjust the work plan or target deliverables including Gantt Chart, as applicable, and corresponding Line Item Budget for the aforementioned period;

WHEREAS, the release of the project MOOE funds for the second tranche, covering the period from January 1 to December 31, 2023, shall be released in accordance with the approved amended Work Plan and Revised Line Item for CY 2023;

WHEREAS, due to the unavailability of the third tranche funds, **CHED,** by virtue of Commission *en banc* (CEB) Resolution No. 123-2024 dated March 25, 2024, approved and authorized the use of the savings/unexpended balance for project-related expenditures from 01 January to 30 June 2024. Further, the Commission also noted that in view of the lack of available funds in CHED, the LAKAS ongoing projects were directed to present their remaining third/final budget requirement to their respective Governing Boards for funding assistance or counterpart, with details as follows:

Implementing HEI	Original Final Tranche of Funds in PhP (Jan-June 2024)	Unexpended Balance approved for utilization in PhP	Remaining Final Tranche requirement in PhP
University of the Philippines	12,906,856.30	2,950,421.66	9,956,434.64
Mindanao State University-Naawan	1,071,072.00	66,046.75	1,005,025.25
Partido State University	1,071,072.00	23,764.43	1,047,307.57
Sorsogon State University	1,131,072.00	7,034.99	1,124,037.01
University of Eastern Philippines	891,072.00	466,918.32	424,153.68

WHEREAS, presentations were made to the respective Governing boards of all UNIVERSITIES involved in the PhycoPRO project;

WHEREAS, following these presentations, only Sorsogon State University and Partido State University secured funding assistance to complete their designated deliverables' final tranche;

NOW, THEREFORE, for and in consideration of the foregoing premises and of the terms and conditions hereinafter stipulated, the Parties hereby agree as follows:

1. The project can use its unexpended balance from CHED to cover project-related expenditures for the third tranche. Any remaining budget requirement will be presented to their respective Governing Boards for funding assistance or to serve as a funding counterpart;

2. The Sorsogon State University and Partido State University are responsible for fulfilling the funding requirement for the completion of their designated deliverables within the Phycopro Project's final tranche;

3. All project deliverables and accomplishments must be reported by the **UNIVERSITIES** to **CHED** through the LAKAS-PMCO. This includes accomplishments achieved using supplementary funding provided by collaborating Higher Education Institutions (HEIs);

4. The UNIVERSITIES are not required to submit liquidation report for their funding counterparts; and

5. The other terms and conditions of the RFA consistent with the herein amendments shall remain valid and in full force and in effect. Otherwise, inconsistent terms and conditions are deemed repelled and without effect.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed effective on _____.

For the
Commission on Higher Education (the **"CHED"**):

J. PROSPERO E. DE VERA III, DPA
Chairman

For the
University of the Philippines
(the **"UP"**):

MICHAEL L. TEE, M.D
Chancellor

For the
Mindanao State University- Naawan Campus
(the **"MSU-Naawan"**):

ELNOR C. ROA, Ph.D.
Chancellor

For the
Partido State University
(the **"ParSU"**):

RAUL G. BRADECINA, Ph.D.
SUC President III

For the
Sorsogon State University
(the **"SorSU"**):

GERALDINE F. DE JESUS Ed.D.
SUC President III

For the
University of Eastern Philippines
(the **"UEP"**):

CHERRY I. ULTRA, Ph.D.
University President

SIGNED IN THE PRESENCE OF:

MARY SYLVETTE T. GUNIGUNDO, Ph.D
Director IV, CHED OPRKM
Program Manager, LAKAS-PMCO

MICHAEL Y. ROLEDA, Dr. rer. nat.
Project Leader

REY Y. CAPANGPANGAN, Ph.D.
MSU-Naawan Collaborator

MICHAEL A. CLORES, Ph.D
ParSU Collaborator

RICHARD V. DUMILAG, Ph.D.
SorSU Collaborator

KARINA MILAGROS CUI-LIM, Ph.D
UEP Collaborator

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)
QUEZON CITY) s.s.

BEFORE ME, a Notary Public for and in Quezon City personally appeared:

Name	ID No	Date and Place of Issuance
J. PROSPERO E. DE VERA III, DPA	CO-0394	14 March 2019 / CHED-CO
MICHAEL L. TEE, M.D	PRC-0089527	valid until 1 May 2025 / Manila
ELNOR C. ROA, Ph.D.	S0018103A	02 December 2019 / DFA Manila
GERALDINE F. DE JESUS Ph.D.	P3032512C	23 January 2033 / DFA Legazpi
RAUL G. BRADECINA, Ph.D.	P7648090B	21 September 2021 / DFA Legazpi
CHERRY I. ULTRA	PRC Registration No. 0003842	05 October 2005 / PRC

known to me to be the same persons who executed the foregoing instrument and acknowledged to me that the same is their free and voluntary act and deed and that of the institutions represented.

This instrument refers to a 2nd Supplemental Agreement for the implementation of the project titled **LAKAS 2021-035 "Phytochemical Characterization of Macroalgae for Food and High Value Products (PhycoPRO)"** under the LAKAS Program consisting of _____ pages and the page on which this Acknowledgement is written including Annex "A" with ____ pages and Annex "B" with ____ pages signed by the parties and their instrumental witnesses on the signature page and initialed on the rest of the pages, and sealed with my notarial seal.

WITNESS MY HAND AND SEAL on _____ at **Quezon City, Philippines**.

Doc. No. ____;
Page No. ____;
Book No. ____;
Series of ____.